TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JUNE 25, 2018
MINUTES

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Michael Robertson, Lynnette Lynes

Mr. Belton called the meeting to order at 6:01 pm and reviewed the procedures with the public. He administered the oath to those speaking.

1. Approval of Agenda

Mr. Wolff moved for approval of the agenda. Mr. Rubin seconded the motion. All in favor.

2. Approval of Minutes

Mr. Wolff moved for approval of the minutes. Mr. Cowden seconded the motion. All in favor.

3. Public Comment & General Correspondence

Mr. Robertson stated that a request for deferral for S-5-18, 440 West Coleman was received earlier today.

Mr. Wolff moved for deferral of item S-5-18, 440 West Coleman Blvd to the July meeting. Mr. Rubin seconded the motion. All in favor.

Mr. Jimmy Bagwell, 41 Vincent Dr, expressed concern with the variance request for 68 Scott Street. He stated that variances should not be blanketly approved and that the ordinances should be upheld. He suggested that the density proposed for the development is too intensive. He asked that the request be denied.

Ms. Marsha Blythe, 610 Haddrell Street, expressed concern with approval of variances as it can increase density. She expressed concern with increasing traffic and that this would adversely affect the quality of life for the entire Town.

Mr. Frank Tolen, 949 South Shem Dr, stated that there is no hardship for approval of the the 68 Scott Street variance request as it is currently vacant land. He asked that the request be denied.

There being no further comments, Mr. Belton continued with the agenda.

A. Request for a one-year extension of Case V-23-16 in accordance with §156.049 Vested Rights.

▶ *Mr. Cowden moved for approval of the one-year extension. Mr. Duke seconded the motion. All in favor.*

Mr. Belton noted that the request was submitted in a timely manner and the extension is allowed as a matter of right under state law.

4. Business

A. Request for Rehearing, Case V-11-18, 832 Coleman Blvd., TMS 532-03-00-090, Appeal for relief from the strict application of §156.171 SCHEDULE OF OFF-STREET PARKING SPACE REQUIREMENTS to allow 20 on-site parking spaces.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Todd Richardson reviewed the request with the Board. He stated that the decision on the variance was based on the public space and provided this additional information for the Board's consideration.

There being no comments, Mr. Belton closed public comment.

▶ *Mr. Wolff moved for approval of a rehearing based on the fact that new information on the public use space was not provided at the previous meeting. Mr. Rubin seconded the motion.*

Mr. Wood suggested that this information would have been available at the time the meeting was held. He stated that the rehearing procedures note that it states that "it should be new evidence that could not have been reasonably presented at the hearing".

Mr. Belton agreed and stated that it should be information that was not available, not information that was not presented. He asked if the information could not have been produced during the initial hearing. Mr. Wolff answered that this information could have been reasonably presented at the time but was not. He suggested that if his motion was out of order, he would withdraw it. Mr. Robertson stated that the motion on the floor should be voted on.

Mr. Belton called for a vote on the motion. Motion passed on a 4 to 3 vote with Mr. Wolff, Mr. Rubin, Mr. Cowden, and Mr. Duke in favor; Mr. Carrier, Mr. Belton, and Mr. Wood opposed.

B. Case V-11-18, 832 Coleman Blvd., TMS 532-03-00-090, Appeal for relief from the strict application of §156.171 SCHEDULE OF OFF-STREET PARKING SPACE REQUIREMENTS to allow 20 on-site parking spaces.

Mr. Richardson and Mr. Trey Sedalik reviewed the request with the Board. He stated that historically, this property has been a restaurant use with a brief retail use. He stated that based on the prior discussion with the Board on public space, they have re-calculated the parking spaces required and referred to the exhibit. Mr. Sedalik stated that they have copies of previous leases as well as a letter from the neighbor in support of the request and distributed copies to the Board. He reviewed the history of uses with the Board. Mr. Richardson stated that there are several grand trees affecting the property and being able to use the calculation for public space would allow for preservation of the trees.

There being no comments, Mr. Belton closed the public comment.

Mr. Robertson reviewed staff comments with the Board (attachment 1). He stated that because of a five-foot buffer, additional variances would be required.

Mr. Cowden asked about the rear fence and posts. Mr. Sedalik answered that the posts are from a fence that was previously erected and stated that these posts would be removed. Mr. Richardson stated that a buffer and fence is required. Mr. Cowden asked if additional pervious parking would be installed. Mr. Richardson answered in the negative.

Mr. Belton asked about the number of parking spaces required. Mr. Robertson answered that based on the square footage, 31 parking spaces would be required.

Mr. Wood asked if the additional variances would have to requested at a future meeting. Mr. Robertson answered in the affirmative.

Mr. Richardson stated that the actual square footage is approximately 3,500 square feet. He stated that it is not confirmed that the interconnectivity could be provided. He suggested that the hardship is having to demolish the building or remove grand trees in order to meet the parking requirements.

Mr. Robertson noted that the neighboring property does not have to agree to the interconnectivity. He stated that the interconnectivity must be allowed for and shown on the site plan. He stated that DRB approved the property for retail use with all requirements being met with no variances. He stated that the variance is being requested based on a restaurant use rather than a retail use.

Mr. Richardson stated that historically this building has been used as a restaurant use. He stated that the building has been in place before the design review requirements were implemented. Mr Sedalik stated that the site plan does indicate future connectivity where an existing driveway is located and they are continuing to work with the adjoining property owner to bring this to fruition.

Mr. Wood asked if there is still an issue with the five-foot buffer that would require a variance. Mr. Robertson stated that the buffer is not currently shown; if shown on site plan, it would reduce the drive aisle and then the drive aisle would not meet Town requirements and a variance would be required. Mr. Wood asked if a variance would be needed if they are meeting the parking requirement. Mr. Robertson answered in the affirmative, because the ordinance calculates the parking based on the entire square footage and not the public space.

Mr. Belton stated that a previous variance was approved allowing a second story square footage not to count toward the parking requirement as it was not being used for public.

Mr. Cowden stated that the property appears to have sufficient parking.

Mr. Cowden moved for approval of the request based on the findings that grand trees would need to be removed in order to meet the parking requirements, property not being used as a restaurant use would be an underutilization of the property with the stipulation that the usable square footage would be 2500 square feet, meaning 25 parking spaces would be required. Mr. Rubin seconded the motion. Motion passed on a 6 to 1 vote with Mr. Wolff, Mr. Rubin, Mr. Cowden, Mr. Belton, Mr. Duke and Mr. Wood in favor; Mr. Carrier opposed.

C. Case V-19-18, 753 McCants Drive, TMS# 532-10-00-159, Appeal for relief from the strict application of §156.227 to allow a 3-foot encroachment into tree protection zone ex post facto of 25-inch water oak.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Michael Kowalski reviewed the request with the Board. Mr. P.O. Mead, arborist, reviewed his arborist report with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff suggested that the difference between an 18 inch tree and a 25 inch tree should be apparent. He expressed concern with granting an ex post facto approval.

Mr. Wolff moved for approval with the condition that treatment continue for 24 months and a failure occurs with the tree, then full mitigation of the inches of the tree would be required. Mr. Cowden seconded the motion. Motion passed on a 6 to 1 vote with Mr. Wolff, Mr. Rubin, Mr. Cowden, Mr. Belton, Mr. Duke, and Mr. Wood in favor; Mr. Carrier opposed.

D. Case V-20-18, Lot 68 Scott Street, TMS# 517-16-00-035, Appeal for relief from the strict standards of §156.318 (P) to allow 3 floor structure above parking. The ordinance allows 45 feet in height with a maximum of three floors. Parking underneath the structure counts as a floor.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Andrew McCluster, representative for the applicant, stated that they have six letters of support from neighbors and provided these to staff. He reviewed the request with the Board. Mr. Michael Washburn stated that their intention is to utilize the property as a live/work space. Ms. Washburn stated that because of health issues, she cannot work away from home. She stated that they intend to keep the character of the neighborhood.

Ms. Ashley Woody, 110 Friend St, agreed with Mr. Bagwell that the number of variances should be discouraged. She suggested that the request would change the character of the neighborhood. She expressed concern with flood issues in the area. She stated that parking is another concern and is a major issue for the area. She reviewed photos of the parking and stated that she is vehemently opposed.

Mr. Dennis Blythe, 610 Pelzer Dr, distributed photos for the Board to review. He agreed with Mr. Bagwell and Ms. Woody. He stated that the property is in a flood zone and regularly floods in addition to several adjacent lots. He stated that the property is currently being graded which could cause additional flooding issues for the adjacent lots. He suggested that approval of the variance would set a precedent for neighboring lots and would increase the amount of impervious surface in the neighborhood. He suggested that additional density and congestion is not needed in this area. He suggested that there is no justification for approval of the variance.

Mr. Mel Mauer, 525 Mill St, stated that he loves Shem Creek as well as Ms. Washburn. He stated that as a neighbor, he was not asked if he was in favor of the request. He stated that he is opposed to the request as it would increase traffic and congestion as well as exacerbate the parking issue. He suggested that the additional floor would affect his view corridor and would be an eye sore. He stated that he is opposed to the request.

There being no further comments, Mr. Belton closed public comment.

Mr. Robertson reviewed correspondence received with the Board.

Mr. Belton asked about how building height is measured. Mr. Robertson reviewed section 156.318(B)(1) and 156.318(B)(2)(b). Mr. Belton asked if the height limit would be exceeded. Mr. Robertson answered in the negative.

Mr. Duke asked where it is stipulated that the garage is considered a floor. Mr. Robertson answered that following a lawsuit, the provision for counting a garage as a floor was codified. He read the definition of a story under 156.007 for the Board.

▶ *Mr. Wolff moved for denial of the request based on the findings that the applicant has not reasonably met conditions, particularly item C as denial would not unreasonably restrict the utilization of the property; the applicant was aware of the zoning at the time of purchase and therefore this would be considered a self-inflicted hardship. Mr. Rubin seconded the motion. All in favor.*

E. Case S-5-18, 440 West Coleman Blvd., TM#517-07-00-024, Request for Special Exception in accordance with the strict standards of §§156.411(A)(3) (a)-(d); 156.113-156.120; 156.323; 156.200-156.201 to allow 105-foot tall, stealth-style wireless telecommunications facility.

This item was deferred.

F. Case V-21-18, 675 Olde Salt Run, TMS# 535-07-00-027, 535-07-00-026, Appeal for relief from the strict application of §156.201 (I)(2) which requires a 35-foot Critical Line Buffer to be established if adjustments are made to the boundaries of the subject lot.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Rod Mosley, applicant, reviewed the request with the Board. He reviewed pictures of the property with the Board.

There being no comments, Mr. Belton closed public comments.

▶ *Mr. Wolff moved for approval of the request based on the findings included in the staff report. Mr. Rubin seconded the motion. All in favor.*

5. Approval of Final Orders

This item was deferred.

There being no further business, the meeting adjourned at 8:05 pm.

Submitted by,
L. Lynes
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